

IN THE CIRCUIT/COUNTY COURT OF THE NINETEENTH JUDICIAL CIRCUIT
IN AND FOR ST LUCIE COUNTY, FLORIDA

☐ Modified
☒ Resentence
☐ Amended
☐ Corrected
☐ Mitigated
☐ Community Control Violator
☐ Probation Violator

Case Number: 562017CF001358AXXXX

STATE OF FLORIDA

- vs -

TIFFANY MICHELLE GELIGA

Defendant

☐ Sexual Predator

☐ Sex Offender

☐ Minor Victim

☐ Sentenced In Absentia

J U D G M E N T

The Defendant, TIFFANY MICHELLE GELIGA being personally before this Court represented by Attorney PATRICK EMERSON MACRAE, the Attorney of record, and the State represented by ROBERT E STONE JR, and having:

☐ been tried and found guilty by Jury/by the Court of the following crime(s).

☐ entered a plea of guilty to the following crime(s).

☒ entered a plea of nolo contendere to the following crime(s)

☐ Admitted Violation of Probation

☐ Found Guilty of Violation of Probation

☐ Admitted a Violation of Community Control

☐ Found Guilty of Violation of Community Control

Count	Crime	Offense Statute Number(s)	Level / Degree	OBTS Number
1	SEXUAL ACTIVITY WITH A MINOR	794.05(1)	F-2	5601228759

☒ and no cause being shown why the defendant should not be adjudicated guilty. IT IS ORDERED THAT the defendant is hereby ADJUDICATED GUILTY of the above crime(s). : AS TO COUNT(s) 1

☐ and being a qualified offender pursuant to Florida Statute 943.325 - defendant shall be required to submit DNA samples as required by law

☐ and good cause being shown; IT IS ORDERED THAT ADJUDICATION OF GUILT BE WITHHELD.

CASE NUMBER: 56 2017CF001358

The Defendant In open Court was advised of the right to appeal from this Sentence by filing notice of appeal within 30 days from this date with the Clerk of this Court and the Defendant's right to the assistance of counsel in taking the appeal at the expense of the State on showing of indigency.

CIRCUIT/COUNTY JUDGE

William Roby

FINGERPRINTS OF DEFENDANT

1. RIGHT THUMB	2. RIGHT INDEX	3. RIGHT MIDDLE	4. RIGHT RING	5. RIGHT LITTLE
				
6. LEFT THUMB	7. LEFT INDEX	8. LEFT MIDDLE	9. LEFT RING	10. LEFT LITTLE
				

Fingerprints taken by:

D/S G. Christ
NAME and TITLE

DEPUTY SHERIFF

I HEREBY CERTIFY that the above and foregoing fingerprints are the finger prints of the Defendant, Geliga, Tiffany, and that they were placed thereon by the Defendant in my presence in open Court this date.

DONE AND ORDERED In Open Court In St. Lucie County, Florida, this 18 day of April, 2022

|| Nunc Pro Tunc To:

CIRCUIT/COUNTY JUDGE

William Roby

___ Violation of Probation, Previously Adjudged Guilty
___ Violation of Community Control, Previously Adjudged Guilty
☒ Resentenced
___ Modified
___ Amended
___ Mitigated
___ Corrected

Case Number 562017CF001358AXXXXX

QBTS Number 5601228759

Defendant **TIFFANY MICHELLE GELIGA**

SENTENCE

(As to Count 1)

The Defendant, being personally before this Court, accompanied by the Defendant's Attorney of record PATRICK EMERSON MACRAE and having been adjudicated guilty, and the Court having given the Defendant an opportunity to be heard and to offer matters in mitigation of sentence, and to show cause why the Defense should not be sentenced as provided by law, and no cause being shown

___ and the Court having on ___ deferred imposition of sentence until this date.

___ and the Court having previously entered a judgment in this case on ___ now resentence the Defendant.

___ and the Court having placed the Defendant on ___ and having subsequently revoked the Defendant's ___.

It Is The Sentence Of Court that:

___ The defendant pay a fine of ___ pursuant to section 775.083, Florida Statutes, plus ___ as the 5% surcharge required on 938.04, Florida Statutes.

☒ The Defendant is hereby committed to the custody of the Department of Corrections.

___ The Defendant is hereby committed to the custody of the Sheriff of St. Lucie County Florida.

___ The Defendant is sentenced as a youthful offender in accordance with section 958.04, Florida Statutes.

To Be Imprisoned (check one; unmarked sections are inapplicable.):

___ For a term of Natural Life.

___ For a term of Natural Life with a 25 year mandatory minimum

☒ For a term of 50.00 MONTH(S) 18.00 DAY(S)

___ The SENTENCE IS SUSPENDED for a period of ___ subject to conditions set forth in this Order.

If 'split' sentence complete the appropriate Paragraph.

___ Followed by a period of ___ on Community Control under the supervision of the Department of Corrections according to the terms and conditions of supervision as set forth in a separate order.

☒ Followed by a period of 2 YEAR(S) probation under the supervision of the Department of Corrections according to the terms and conditions of supervision as set forth in a separate order.

___ However, after serving a period of imprisonment in PRISON, the balance of the sentence will be suspended and the Defendant will be on Probation/Community Control under the supervision of the Department of Corrections according to the terms and conditions of Probation/Community Control as set forth in a separate order.

In the event the Defendant is ordered to serve additional, split sentences, all incarceration portions shall be satisfied before the Defendant begins service of the supervision terms.

SPECIAL PROVISIONS
(As to Count 1)

By appropriate notation, the following provisions apply to the sentence imposed
Mandatory/ Minimum Provisions:

<i>Firearm</i>	It is further ordered that the _____ minimum imprisonment provisions of section 775.087, Florida Statutes, is hereby imposed for the sentence specified in this count.
<i>Drug Trafficking</i>	It is further ordered that the _____ minimum imprisonment provisions of section 893.135, Florida Statutes, is hereby imposed for the sentence specified in this count, and that the Defendant pay a fine of \$____, pursuant to section 893.135, Florida Statutes, plus \$____ as a 5% surcharge.
<i>Law Enforcement</i>	It is further ordered that the _____ minimum mandatory imprisonment provision of section 784.07, Florida Statutes, is hereby imposed for the sentence specified in this count.
<i>Controlled Substance Within 1,000 Feet of School</i>	It is further ordered that the 3 year minimum imprisonment provision of section 893.13(1)(c), Florida Statutes, is hereby imposed for the sentence in this count.
<i>Habitual Felony Offender</i>	The Defendant is adjudicated a habitual felony offender and has been sentenced to an extended term in accordance with the provisions of section 775.084(4)(a), Florida Statutes. The requisite findings by the Court are set forth in a separate order or stated on the record in open court.
<i>Habitual Violent Felony</i>	The Defendant is adjudicated a habitual violent felony offender and has been sentenced to an extended term in accordance with the provisions of sections 775.084(4)(b), Florida Statutes. A minimum term of _____ year(s) must be served prior to release. The requisite findings of the Court are set forth in a separate order as stated on the record in open court.
<i>Violent Career Criminal</i>	The Defendant is adjudicated a violent career criminal and has been sentenced to an extended term in accordance with the provisions of section 775.084(4)(d), Florida Statutes. A minimum of _____ must be served prior to release. The requisite findings of the Court as set forth in a separate order or stated on the record in open court. (For crimes committed on or after May 24, 1997.)
<i>Capital Offense</i>	It is further that the Defendant shall serve no less than 25 years in accordance with provisions of section 775.082(1), Florida Statutes. (For first degree murder committed prior to May 25, 1994, and for any other capital felony committed prior to October 1, 1995.)
<i>Prison Releasee</i>	Defendant is adjudged a prison releasee reoffender in accordance with the provision of section 775.082(9), FL Statutes.
<i>Sexual Predator</i>	Defendant is adjudged a sexual predator in accordance with provision of section 775.21, Florida Statutes.
Other Provisions:	X
Jail Credit	<u>It is further ordered that the Defendant shall be allowed a total of 50 MONTH(S) 18 DAY(S) as credit for time incarcerated before imposition of this sentence.</u>
<i>Credit for Time Served in Resentencing After Violation of Probation or Community Control</i>	It is further ordered that the Defendant be allowed _____ days time served between date of arrest as a violator following Release from prison to the date of resentencing. The Department of Corrections shall apply original jail time credit and shall compute and apply credit for time served and unforfeited gain time previously awarded on case/count _____ (Offenses committed before October 1, 1989) It is further ordered that the Defendant be allowed _____ days time served between date of arrest as a violator following release from prison to the date of resentencing. The Department of Correction shall apply original jail time credit and shall compute and apply credit for time served on case/count _____ (Offenses committed between October 1, 1989, and December 31, 1993) — The Court deems the unforfeited gain time previously awarded on the above case/count forfeited under section 948.06(6), Florida Statutes. — The Court allows unforfeited gain time previously awarded on the above case/count. (Gain time may be subject to forfeiture by the Department of Corrections under section 944.28(1)), Florida Statutes. It is further ordered that the Defendant be allowed _____ time served between date of arrest as a violator following release from prison to the date of resentencing. The Department of Corrections shall apply original jail time credit and shall compute and apply credit for time served only pursuant to section 921.0017, Florida Statutes, on case/ count . (Offenses committed on or after January 1, 1994)
<i>Consecutive/ Concurrent As To Other Counts</i>	It is further ordered that the sentence imposed for this count shall run _____ with the sentence set forth in count _____ of this case.

☐ Violation of Probation, Previously Adjudged Guilty
☐ Violation of Community Control, Previously Adjudged Guilty
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Defendant: TIFFANY MICHELLE GELIGA

Other provisions, continued:

Consecutive/Concurrent
To Other Convictions

It is further ordered that the composite term of all sentences imposed for the counts specified
in this order will run
(check one) ☐ Consecutive To ☐ Concurrent To

Concurrent with the following:

(check one)

☐ any active sentence being served.

☐ specific sentences: _____

In the event the above sentence is to the Department of Corrections, the Sheriff of St. Lucie County, Florida, is hereby ordered and directed to deliver the defendant to the Department of Corrections and the facility designated by the department together with a copy of this Judgment and Sentence and any other documents specified by Florida Statute.

The Defendant in open court was advised of the right to appeal from this Sentence by filing notice of appeal within 30 days from this date with the Clerk of this Court and the Defendant's right to the assistance of counsel in taking the appeal at the expense of the state upon a showing of indigency.

In imposing the above sentence, the Court further recommends / orders

DONE AND ORDERED in Open Court at St. Lucie County, Florida, on April, 18 2022.

Nunc Pro Tunc to: _____



Circuit/County Judge WILLIAM L ROBY